

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
MELVIN SMITH,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JOSE SANDOBAL, Shield # 2208, UC POLICE OFFICER # C0273, UC POLICE OFFICER # C0019, DETECTIVE TYRONE VIRUCT, Shield # 5654, DETECTIVE JEFF HARRIS, Shield # 1542, SERGEANT JOSEPH SERRANO, and POLICE OFFICERS JOHN DOES# 1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

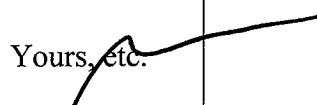
The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 5, 2014

Yours, etc. 

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
DETECTIVE JOSE SANDOBAL, Shield # 2208, Narcotics Boro Manhattan North, 1
Police Plaza, Room 1100, NY, NY
UC Police Officer # C0273, Narcotics Boro Manhattan North, 1 Police Plaza, Room
1100, NY, NY
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Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, MELVIN SMITH, by his attorneys, Jacobs & Hazan, LLP, as and for his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 8, 2013, at approximately 3:30 p.m., plaintiff, MELVIN SMITH, while lawfully walking in the vicinity of 71 West 112th Street, New York, New York, was subject to an unlawful assault, battery, and use of excessive force by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully assaulted, battered, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff MELVIN SMITH is a resident of the State of New York.

3. DETECTIVE JOSE SANDOBAL, Shield # 2208, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE JOSE SANDOBAL, Shield # 2208, is and was at all times relevant herein, assigned to Narcotics Boro Manhattan North.

5. DETECTIVE JOSE SANDOBAL, Shield # 2208, is being sued in his individual and official capacities.

6. UC POLICE OFFICER # C0273, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. UC POLICE OFFICER # C0273, is and was at all times relevant herein, assigned to Narcotics Boro Manhattan North.

8. UC POLICE OFFICER # C0273, is being sued in his individual and official capacities.

9. UC POLICE OFFICER # C0019, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. UC POLICE OFFICER # C0019, is and was at all times relevant herein, assigned to Narcotics Boro Manhattan North.

11. UC POLICE OFFICER # C0019, is being sued in his individual and official capacities.

12. DETECTIVE TYRONE VIRUCT, Shield # 5654, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. DETECTIVE TYRONE VIRUCT, Shield # 5654, is and was at all times relevant herein, assigned to Narcotics Boro Manhattan North.

14. DETECTIVE TYRONE VIRUCT, Shield # 5654, is being sued in his individual and official capacities.

15. DETECTIVE JEFF HARRIS, Shield # 1542, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. DETECTIVE JEFF HARRIS, Shield # 1542, is and was at all times relevant herein, assigned to Narcotics Boro Manhattan North.

17. DETECTIVE JEFF HARRIS, Shield # 1542, is being sued in his individual and official capacities.

18. SERGEANT JOSEPH SERRANO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. SERGEANT JOSEPH SERRANO, is and was at all times relevant herein, assigned to Narcotics Boro Manhattan North.

20. SERGEANT JOSEPH SERRANO, is being sued in his individual and official capacities.

21. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers John Does #1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

25. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

26. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

27. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

28. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

30. On March 8, 2013, at approximately 3:30 p.m., plaintiff was lawfully walking in the vicinity of 71 West 112th Street, New York, New York.

31. All of a sudden without provocation or legal justification, the defendant police officers grabbed plaintiff and threw him onto the ground.

32. While plaintiff was on the ground the defendant police officers continuously kicked, punched, and stomped plaintiff's body, causing plaintiff to suffer serious physical injuries, including but not limited to, a fractured hand.

33. At no time did plaintiff resist arrest in any way.

34. At no time did the defendants recover any weapons of any kind from plaintiff's person.

35. No reasonable police officer would have believed it was necessary to use physical force against plaintiff at any time.

36. Plaintiff was assaulted and battered and excessive force was used against plaintiff by the defendants without cause or legal justification.

37. After plaintiff was assaulted by the defendant police officers, he requested medical attention for his injuries, however he was denied medical attention.

38. Thereafter, plaintiff was transported to the 28th precinct for arrest processing.

39. On or about March 9, 2013, plaintiff was transported to Manhattan Central Booking.

40. Upon information and belief, when plaintiff arrived at Manhattan Central Booking, Manhattan Central Booking refused to accept him because he had severe physical injuries that required medical treatment.

41. Plaintiff was finally transported to New York Downtown Hospital to receive treatment for the injuries caused by the defendant police officers.

42. While at New York Downtown Hospital, plaintiff was treated for numerous injuries, including but not limited to, a fractured hand.

43. Thereafter, on March 9, 2013, plaintiff was discharged from New York Downtown Hospital to the custody of the defendants, who transported plaintiff back to Manhattan Central Booking.

44. Plaintiff was arraigned on March 10, 2013, and the judge set bail in an amount that plaintiff could not post, so he was remanded to the custody of the Department of Correction.

45. Plaintiff received further medical treatment while he was in the custody of the Department of Correction.

46. None of the individually named defendants intervened to prevent or stop the assault and battery of plaintiff or prevent further injury to plaintiff.

47. By failing to intervene in order to stop this assault and battery, these defendants demonstrated a deliberate indifference to a substantial risk of serious harm to plaintiff.

48. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident, plaintiff suffered significant and permanent physical injuries.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The use of excessive force by defendants in throwing plaintiff onto the ground and stomping on his body, hands, and shoulders was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Assault

52. Plaintiff repeats and realleges paragraphs 1 through 51 as if fully set forth herein.

53. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Battery

56. Plaintiff repeats and realleges paragraphs 1 through 55 as if fully set forth herein.

57. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually

named defendants, individuals who were unfit for the performance of correction officer duties on February 8, 2013 at the aforementioned location.

FIFTH CAUSE OF ACTION

Failure to Intervene

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

64. Defendants failed to intervene to prevent the unlawful conduct described herein.

65. As a result of the foregoing, plaintiff was brutally physically assaulted.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligence

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants owed a duty of care to plaintiff.

70. Defendants breached that duty of care by assaulting, battering, and using excessive force against plaintiff.

71. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

72. All of the foregoing occurred without any fault or provocation by plaintiff.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. By the actions described herein, the individually named correction officer defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff Melvin Smith. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

76. As a result of the foregoing, plaintiff was deprived of liberty, was assaulted, and sustained great emotional injuries.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. Defendants, despite being aware that they had seriously injured plaintiff, refused to administer and properly procure, immediate and adequate medical attention.

80. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

82. Pursuant to 28 U.S.C. § 1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims and pursuant to the Fourth Amendment of the United States Constitution this Court has jurisdiction to hear the federally based claim.

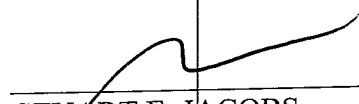
JURY DEMAND

83. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Melvin Smith demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 5, 2014

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 5, 2014



STUART E. JACOBS